PEER REVIEW OF THE AUTOMATION TO PROCESS CANADA-UKRAINE AUTHORIZATION FOR EMERGENCY TRAVEL (CUAET) TEMPORARY RESIDENT (TR) APPLICATIONS

Completed by Global Affairs Canada
Introduction and Response by Immigration, Refugees and Citizenship Canada

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Introduction to CUAET-related Automation

Background

Automated tools are part of Immigration, Refugees and Citizenship Canada (IRCC)'s commitment to using technology responsibly to build a stronger immigration system for all of our clients. Following the introduction of Canada-Ukraine Authorization for Emergency Travel (CUAET) measures in 2022, IRCC's International Platform Branch (IPB) implemented automation functionality within the Global Case Management System (GCMS – the Department's system of record for application processing) to perform basic tasks and business rule-based decision making for CUAET temporary resident visa (TRV) and work permit (WP) applications. As required by the Treasury Board Secretariat's (TBS) *Directive on Automated Decision-Making*, a peer review of the automation process was conducted by the Consular Program Management and Analytics (CNA) Division, and the Consular, Security and Emergency Management (CFM) Branch at Global Affairs Canada (GAC).

The goal of the peer review report was to review the automated decision system and provide an informed assessment of whether the technology is being used responsibly. The peer review completed by GAC validated the *Algorithmic Impact Assessment* (AIA), the quality of the system, the appropriateness of the quality assurance and risk mitigation measures, and identified the residual risk of operating the system.

Automation To Process CUAET TR Applications

IRCC automated the processing of CUAET TRV and WP applications throughout 2022 to automate certain assessments based on specified business rules, as well as administrative steps for TRV and WP applications that do not require human intervention.

At a high level, the automation project included the following from a systems perspective:

1. Using existing automation functionalities in GCMS for positive determinations to align with CUAET requirements
2. Using existing automation functionalities to capture any data that may lead to inadmissibility under IRPA
3. Completing data entry on administrative steps following an approval

In cases where the business rules for positive determinations were not met, the application was still reviewed by a processing officer. An Algorithmic Impact Assessment was completed per the Directive on Automated Decision-Making.

Summary of Peer Review by GAC

To meet the requirements within the TBS Directive on Automated Decision-Making, GAC conducted a peer review at IRCC's request on the automation framework for CUAET TRV and WP applications. The objective of the peer review was to analyze the applicability of the business rules, the deployment of the automated system, review the identified impacts and mitigation measures; and the evaluation and monitoring processes that were implemented.

Following the review of the documentation provided by IRCC and an in-depth review of the process with IRCC subject matter experts, GAC's analysis has found that the automation process is generally well thought-out. The automation process is carefully planned and executed, and the rationale for the process delivers on a key Government of Canada priority, which is to prioritize processing for Ukrainian nationals and individuals residing in Ukraine.

GAC has found:

- The business rules developed for CUAET automation considers relevant legal frameworks governing temporary resident visa issuance and the limitation of the automation process to positive decisions minimizes legal risks or the risk of negative impacts on individual clients.
- The deployment of the automation process is well thought-out and there was extensive solicitation with stakeholders. The automation is also robust as it operates in a secure technical environment where client information is protected in accordance with the legal requirements of the Privacy Act.
- An AIA was completed, and the analysis contained in that document appeared to be clearly justified and accurate. The AIA outlined potential risks, as well as mitigation measures for those risks, which were well outlined and logical.
- An evaluation and monitoring process did not reveal any concerns with the automation process. The automation in GCMS has an audit trail that allows for scrutiny of every application.

GAC recommends ongoing quality assurance, reviews, regular check-ins with staff at processing centres to ensure that the automation process continues to meet the intended business needs and avoid unintended outcomes, including those covered under the GBA Plus. This includes identifying any additional impacts to clients based on identity factors that may have been missed and continue to mitigate any that remain.

IRCC Response

Following GAC's peer review of the automation framework for CUAET TRV and WP applications, IRCC has taken steps to incorporate the recommendations.

The CUAET measure has ended and only CUAET TRV and WP applications received before July 16th, 2023 will continue to go through GCMS automation. However, IRCC continued to perform quality assurance and monitoring reviews on these applications until it was stopped on March 18, 2024, by which time both inventory and output were significantly reduced. Since the measure has ended, enhancements to system functionality to address any issues identified have been de-prioritized. Instead, these enhancements will be considered for future IRCC automation initiatives should GCMS automation be leveraged once again.